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IN THE UNITED STATES COURT OF MILITARY COMMISSION REVIEW

DAVID M. HICKS, *Appellant,*	IN THE COURT OF MILITARY COMMISSION REVIEW
Appellant, v.	**BRIEF OF THE UNITED STATES ON THE COURT'S LACK OF AUTHORITY TO HEAR THIS CASE**
UNITED STATES OF AMERICA, v. *Appellee.*	Tried at Guantanamo Bay, Cuba on 26 & 30 March 2007 before a Military Commission convened by Hon. Susan J. Crawford
UNITED STATES OF AMERICA, Appellee.	Presiding Military Judge Colonel Ralph H. Kohlmann, USMC

TO THE HONORABLE, THE JUDGES OF THE COURT OF MILITARY COMMISSION REVIEW

Mark S. Martins
Brigadier General, U.S. Army
Chief Prosecutor
Edward S. White
Captain, JAGC, U.S. Navy
Marc A. Wallenstein
Danielle S. Tarin
Appellate Counsel
Office of the Chief Prosecutor
Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301-1610

MARK S. MARTINS
Brigadier General, U.S. Army
Chief Prosecutor
EDWARD S. WHITE
Captain, JAGC, U.S. Navy
Appellate Counsel
MARC A. WALLENSTEIN
Appellate Counsel
DANIELLE S. TARIN
Appellate Counsel

Office of the Chief Prosecutor
Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301-1610
marc.a.wallenstein.civ[redacted]
[redacted]
Counsel for the United States

December 19, 2013

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ISSUES PRESENTED AND BRIEF ANSWERS

The Court has directed the parties to:

1. *[F]ile briefs with supporting documentation which address only matters relevant to this Court's authority to hear this case including, but not limited to:*

   a. *Statutory and other authority relevant to determining "whether the case [is] properly before [this Court]." United States v. Shipp, 203 U.S. 563, 573 (1906).*

   This case is not properly before the Court because (1) Hicks knowingly, intelligently, and voluntarily waived appeal, *see* Part I.A; Part II; and (2) the Convening Authority has not referred the case for appeal or forwarded the record for review, *see* Part I.B.

   b. *Whether the convening authority complied with the "automatic referral for appellate review" requirements of 10 U.S.C. § 950c(a) and R.M.C. 1111?*

   Yes, the Convening Authority complied with 10 U.S.C. § 950c(a) and R.M.C. 1111. By their plain text, they apply only where an accused has not waived appeal. Where, as here, an accused has waived appeal, that waiver "bars review" under 10 U.S.C. § 950c(d). *See* Part I.

   c. *When were the accused and defense counsel served with the convening authority's action? See 10 U.S.C. § 950c(b)(3); Manual for Military Commissions, Rules for Military Commissions 1107(h) and 1110(f)(1); and Regulation for Trial by Military Commission (RTMC), paragraphs 23-10 and 24-2.b.*

   The accused was served with the Convening Authority's Action on May 2, 2007. *See* A302.[1]

   d. *Whether the accused "file[d] with the convening authority a statement expressly waiving [his] right" to review by this Court? 10 U.S.C. § 950c.*

   Although Hicks did not file a waiver of appeal directly with the Convening Authority, he did submit a waiver to the Military Judge just before trial proceedings adjourned on March 30, 2007. That waiver was marked AE 33 and filed in the record, putting the parties and the Convening Authority on notice that Hicks had waived appeal. *See* App. 1; A296-A297 (Tr. 248:21-249:21).

   Hicks' premature filing of the waiver with the Convening Authority does not render his waiver invalid. *See* Part III.

   e. Whether "[t]he Legal Advisor to the Convening Authority … review[ed] any waivers [of] such review? RTMC, paragraph 24-2.b.5 (2011).

   Although the current Regulation for Trial by Military Commission requires the Legal Advisor to review a waiver of appeal for completeness, there was no Regulation for Trial by Military

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[1] All references to "A__" refer to the Appendix to Brief of Appellant David M. Hicks, filed on November 5, 2013.

[2] All references to "App. __" refer to the Appendix filed herewith.

Military Commission in effect when the Legal Advisor made his Recommendation in this case, so he had no obligation to conduct such a review. *See infra* 10 n.6.

f. What effect, if any, does the statement in the RTMC that "[t]he U.S.C.M.C.R. should decide the legal sufficiency of waivers" have upon our authority to hear this case? RTMC paragraph § 24-2.b.5 (2011).

(f) What effect, if any, does the statement in the RTMC that "[t]he U.S.C.M.C.R. should decide the legal sufficiency of waivers" have upon our authority to hear this case?

None. This Court lacks subject matter jurisdiction over this action because Hicks' waiver "bars review" and because the Convening Authority has not referred the case for review or forwarded the record. 10 U.S.C. §§ 950c(d), 950f(c). The R.T.M.C. cannot expand the Court's jurisdiction beyond the scope set by Congress in the Military Commissions Act ("M.C.A."). *See* Part I. At most, this statement authorizes the Court to review the record, including the providence inquiry and waiver form signed by the accused and his counsel, to determine whether the plea colloquy and waiver comply with the basic requirements of the M.C.A. and the R.M.C. (which they do). *See* Part II.A.

STATEMENT OF STATUTORY JURISDICTION

For all the reasons discussed herein, the Court lacks jurisdiction over this action.

STATEMENT OF FACTS

A. Hicks and His Defense Counsel Knowingly and Voluntarily Offered and Agreed to Waive Appellate Review

On March 26, 2007, David M. Hicks, his defense counsel, and the Convening Authority each signed the Pretrial Agreement ("PTA"). A29-A30. In the PTA Hicks "freely and voluntarily" offered to plead guilty "because I am guilty."[3] A26. Hicks offered, among other things, to plead guilty to the charge and specification and not to "make, participate in, or support any claim . . . in any forum against the United States . . . with regard to any capture, detention, or prosecution." A29; A188-189 (Tr. 140:22-141:5).

[3] Hicks argues that he was willing to plead guilty "especially since he did not have to admit to having committed a crime." Hicks Br. 11; *see id.* 5 & n.5. Hicks and his attorney Joshua Dratel both assert in affidavits that Hicks entered "an Alford plea," which "involved pleading guilty but without admitting that I was in fact guilty." Hicks Aff. ¶ 270. While not central to this appeal, Hicks and his attorneys are wrong.

Hicks admitted he was in fact guilty of the charged offense. In the PTA, Hicks stated: "I assert that I am, in fact, guilty of the offense to which I am offering to plead guilty." A26. The Military Judge asked if Hicks understood that, by accepting the PTA, "you assert that you are in fact guilty of the offense to which you are pleading guilty," and Hicks responded, "Yes, sir." A175 (Tr. 127:1-14). A typical *Alford* plea involves a defendant who maintains his innocence but admits the government could prove its case beyond a reasonable doubt. *See North Carolina v. Alford*, 400 U.S. 25, 37-38 (1970). While there are some similarities between Hicks' plea and an *Alford* plea, Hicks did not maintain his innocence and admitted he was, in fact, guilty.

In exchange for Hicks waiving his appellate and other rights and pleading guilty, the Convening Authority agreed, among other things, (1) that she would approve a sentence of no greater than seven years, (2) "to suspend any portion of a sentence to confinement in excess of nine months," and (3) to "transfer custody and control of the Accused to the Government of Australia by not later than sixty (60) days from the date upon which the sentence is announced." A31.[4] Hicks acknowledged in the PTA that "it will be in my best interest that the Convening Authority grant me the relief" described in this paragraph, which is set forth in Appendix A of the PTA. A26; *see* A31. Each of these was done.

B. Hicks Knowingly and Voluntarily Entered Into a Stipulation of Fact

On March 29, 2007, Hicks and his defense counsel Major Mori both signed a Stipulation of Fact, previously signed by the prosecution. Hicks stated that the "stipulation of fact is entered into by the Prosecution and Defense knowingly and voluntarily" and that "the following facts are true." A1. Hicks admitted that he "joined a terrorist organization known as Lashkar-e-Tayyiba (LET)" in November 1999, A1, trained at an LET training camp in "weapons familiarization and firing, map reading, land navigation, and troop movement," A2, and then traveled to Afghanistan and participated in al Qaeda's "eight week basic training course" at the al Farouq camp, which included "weapons familiarization and firing, land mines, tactics, topography, small unit fire, maneuver tactics, field movements, and other areas." A3. He later trained in al Qaeda's seven-week "guerilla warfare and mountain tactics" course, which included "marksmanship, small team tactics, ambush, camouflage, rendezvous techniques, and techniques to pass intelligence and supplies to al Qaeda operatives." A3-A4. While at al Farouq, Hicks sat with Usama bin Laden and asked him why there were no training materials provided in English. A4. Hicks was later "summoned and interviewed" by Muhammad Atef, then Al Qaeda's military commander, about "his knowledge of Usama bin Laden; al Qaeda; [and] his ability to travel around the

[4] The Convening Authority further agreed to (and did) dismiss Specification 2 of the Charge with prejudice; that the Military Judge would instruct the commission members regarding the limits on their discretion; and that the prosecution would not present evidence in aggravation during sentencing. A31.

world," among other things. A4. Hicks attended al Qaeda's urban tactics course at Tarnak Farm, followed by a four-week course on "information collection and surveillance" in Kabul. A4.

On or about September 9, 2001, Hicks traveled to Pakistan to visit a friend. While at this friend's house, Hicks "watched television footage of the September 11, 2001 attacks on the United States," and the friend "interpreted [Hicks'] gestures as approval of the attacks." A4. On or about September 12, 2001, Hicks returned to Afghanistan to join with al Qaeda. A4. He chose to join a group of al Qaeda and Taliban fighters near the Kandahar Airport. A5. He was issued an AK-47 automatic rifle, and also "on his own . . . armed himself with six (6) ammunition magazines, approximately 300 rounds of ammunition, and three (3) grenades to use in fighting the United States, Northern Alliance, and other Coalition forces." A5. Hicks guarded a Taliban tank, A5, and "implemented the tactics that he had learned with al Qaeda and attempted to train some of the others positioned with him at Kandahar." A5. Hicks then "decided to look for another opportunity to fight in Kabul" where he met a friend from LET. A5. Hicks and his LET friend traveled to the "front lines" in Konduz, where Hicks "spent two hours on the frontline before it collapsed and he was forced to flee." A5.[5]

The Military Judge asked Hicks, with respect to the Stipulation of Fact, "Is there anything in here that you disagree with or feel is untrue?" A137 (Tr. 89:14-15). Hicks responded, "No." A137 (Tr. 89:16); *see* A133 (Tr. 85:17-22).[4]

ARGUMENT

I. THE COURT SHOULD DISMISS THIS ACTION FOR LACK OF JURISDICTION

As a court created by statute, U.S.C.M.C.R. is a court of limited jurisdiction. *Christianson v. Colt Indus. Operating Corp.*, 486 U.S. 800, 818 (1988). The Court has the power to hear a case only if that power has been granted to it by Congress. *Id.* ("Courts created by statute can have no jurisdiction but such as the statute confers." (quoting *Sheldon v. Sill*, 49 U.S. (8 How.) 441, 449 (1850)). If the Court lacks jurisdiction, then it may go no further; the Court must dismiss the case. *Ex parte McCardle*, 74 U.S. (7 Wall.) 506, 514 (1868). The party claiming that the Court has jurisdiction, Hicks "has the burden to demonstrate that it exists." *Khadr v. United States*, 529 F.3d 1112, 1115 (D.C. Cir. 2008).

A. The Court Lacks Jurisdiction Because Hicks Has Waived Appeal

The United States acknowledges that an accused does not waive challenges to a trial court's subject-

C. Hicks Pleaded Guilty and Swore Under Oath in an Extensive Providence Inquiry That His Plea Was Voluntary, Not Coerced, and That He Had Waived His Right to Appeal

On March 26, 2007, Hicks pleaded guilty to one specification of providing material support for terrorism, 10 U.S.C. § 950v(b)(25) (2006). A122 (Tr. 74:1-7). Three days later, on March 29, 2007, Hicks "knowingly and voluntarily" agreed that the facts supporting the charge

[5] Hicks further acknowledged in the Stipulation that "he has never been the victim of any illegal treatment at the hands of any personnel while in the custody or control of the United States." A6.

[4] Hicks further acknowledged in the Stipulation that "he has never been the victim of any illegal treatment at the hands of any personnel while in the custody or control of the United States." A6.

Subject-matter jurisdiction is non-waivable.[7] But that does not mean Hicks may raise his jurisdictional claim in whatever forum he chooses. Although the *argument* that a court lacks subject-matter jurisdiction is not waivable, the *procedural right* to lodge that argument in a direct appeal *is* waivable. If an accused waives the procedural right to appeal, his waiver bars the Court from reviewing his case in its entirety, including the argument that the military commission lacked subject-matter jurisdiction. Here, Hicks' waiver "bars review" by the Court of Military Commissions Review. 10 U.S.C. § 950c(d). The natural reading of this language is that the waiver is itself jurisdictional. Waiver, once executed in legally sufficient form in compliance with the M.C.A. and R.M.C., deprives the Court of jurisdiction to hear this action in its entirety, regardless of the content of Hicks' claims.

Hicks' central argument is a challenge to the jurisdiction of the military commission based on *Hamdan II*. Before any appellate court could consider that argument, however, it must first satisfy itself that it has jurisdiction over the appeal. Only then can the appellate court consider whether the trial court had jurisdiction. *See Steel Co. v. Citizens for Better Env't*, 523 U.S. 83 (1998).

CONCLUSION

For the foregoing reasons, the Court lacks subject matter jurisdiction, and in the alternative, it should enforce the Pretrial Agreement and dismiss this action.

Dated: December 19, 2013

Respectfully submitted,

//s// Marc E. Wallenstein
Officer of Military Commissions
1640 Defense Pentagon
Washington, D.C. 20301-1640
Counsel for the United States

[7] Hicks (at 7) cites *United States v. Corrick*, 298 U.S. 435, 440 (1936), *United States v. Cotton*, 535 U.S. 625, 630 (2002), and *United States v. Alexander*, 61 M.J. 266, 269 (C.A.A.F. 2005) in support of this proposition, but in those cases, unlike here, there was no challenge to the appellate court's jurisdiction over the case—only the trial court's jurisdiction was at issue.

Hicks (at 8) cites *United States v. Peter*, 310 F.3d 709, 715 (11th Cir. 2002) for essentially the same the proposition, but in that case the parties agreed the district court had subject matter jurisdiction over the defendant's writ petition, and the appellate court had jurisdiction over the writ appeal. Here, by contrast, the U.S.C.M.C.R. does not have jurisdiction over petitions for extraordinary writs of the type at issue in *Peter*. *See* Part V, *infra*. Moreover, *Peter* is wrongly decided, as two other circuits have recently held. *See United States v. Scruggs*, 714 F.3d 258, 263-64 & n.26 (5th Cir. 2013); *United States v. De Vaughn*, 694 F.3d 1141, 1148-49 (10th Cir. 2012). Significantly, *Scruggs* abrogates and essentially overrules another case cited by Hicks (at 8), *United States v. Meacham*, 626 F.2d 503, 510 (5th Cir. 1980).

[8] Hicks (at 7) cites *United States v. Daly*, 69 M.J. 485, 486 (C.A.A.F. 2011), but that case supports the conclusion that this Court lacks jurisdiction. *Daly* held that the appellate court did not have jurisdiction because the United States had failed to file notice of appeal within 72 hours after the trial court's decision, as required by statute. *See* 10 U.S.C. § 862(a)(2). *Daly* held the 72-hour period was jurisdictional and dismissed the case. Applying *Daly* here, Hicks' waiver of appeal is jurisdictional. That the Convening Authority did not refer the case or forward the record are both jurisdictional. Those facts are analogous to the United States' failure to timely file a notice of appeal in *Daly*, because each deprives the reviewing court of jurisdiction under the relevant statutes.

CERTIFICATE OF COMPLIANCE

CERTIFICATE OF COMPLIANCE WITH RULE 14(i)

1. This brief complies with the type-volume limitation of Rule 14(i) because it contains 13879 words;
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Dated: December 19, 2013
Dated: December 19, 2013



MARC A. WALLENSTEIN
Counsel for the United States
Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301-1610
marc.a.wallenstein.civ[redacted]

//s// Marc A. Wallenstein
Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301
Counsel for the United States

CERTIFICATE OF SERVICE

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I certify that a copy of the foregoing was sent by electronic mail to Baher Azmy, J. Wells Dixon, Shayana D. Kadidal, Susan Hu, and Joseph Margulies, civilian appellate defense counsel, and Samuel T. Morison and Capt Justin Swick, detailed appellate defense counsel, on December 19, 2013.

I certify that a copy of the foregoing was sent by electronic mail to Baher Azmy, J. Wells Dixon, Shayana D. Kadidal, Susan Hu, and Joseph Margulies, civilian appellate defense counsel, and Samuel T. Morison and Capt Justin Swick, detailed appellate defense counsel, on December 19, 2013.

//s// Marc A. Wallenstein
Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301
Counsel for the United States

MARC A. WALLENSTEIN
Counsel for the United States

Office of Military Commissions
1610 Defense Pentagon
Washington, D.C. 20301-1610
marc.a.wallenstein.civ[redacted]
[redacted]